

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

BED BATH & BEYOND INC., *Complainant*

v.

ORIENT OVERSEAS CONTAINER LINE LIMITED AND OOCL
(EUROPE) LIMITED, *Respondents*.

DOCKET NO. 23-02

Served: March 31, 2025

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

ORDER DENYING MOTIONS FOR CONFIDENTIAL TREATMENT

Complainant Bed Bath & Beyond Inc. (“BBBY”) filed motions for confidential treatment accompanying its initial brief on December 13, 2024, its amended initial brief on January 17, 2025, and its reply brief on March 21, 2025. Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited (Respondents collectively referred to as “OOCL”) also filed a motion to seal along with their opposition brief on February 27, 2025.

This order denies without prejudice these four motions for confidential treatment because they are overbroad and the manner in which confidential material is marked is not sufficiently clear. The parties are allowed to file a renewed joint motion for confidential treatment, including a revised confidentiality table covering both BBBY and Respondents’ materials, by April 28, 2025. The parties must also submit properly marked revised public and confidential versions of filings by April 28, 2025. If the parties submit another overbroad request for confidential treatment, the motion will be summarily denied.

Commission Rules permit the Presiding Officer to issue an order requiring “that a trade secret or other confidential research, development, or commercial information not be disclosed or be disclosed only in a specified way.” 46 C.F.R. § 502.141(j)(1)(vii). The Commission recently reversed a grant of confidentiality, stating:

Now, the Commission requires more formality and clarity, including a motion explaining the need for confidential treatment, two copies of the confidential document, and *good cause demonstrating that the information is a trade secret or other confidential research, development, or commercial information*. See Amendments to Rules Governing Service of Private Party Complaints and Documents Containing Confidential Information, 80 Fed. Reg. 14318, 14319 (Mar. 19, 2015).

Genesis Resource Enterprise Inc. v. Maersk Line, Ltd., Docket No, 2014(I), 2024 WL 5054939, at *1 (FMC Dec. 4, 2024) (emphasis added).

The parties in this proceeding have been previously cautioned against over designating confidential material:

The parties are cautioned, however, that overbroad confidentiality designations will not be permitted when the briefs are filed. Specifically, information that was not confidential or sent with the expectation that the information remain confidential are not entitled to confidential treatment under the parties' Protective Order and will not be afforded confidential treatment under Commission rules. If the communication includes confidential rates, the actual rates may be entitled to confidential treatment. However, internal communications that merely describe Respondents' opinions of the October letter or reactions to it are unlikely to be entitled to confidential treatment. In addition, it is hard to see how communication to or from Complainant would be entitled to confidential treatment.

Order on Amended Complaint, Confidentiality, and 4th Revised Scheduling Order at 5. The over-designation of confidential material unnecessarily complicates proceedings, causes delay, and limits discussion of important issues.

Any information that is public is not entitled to confidential treatment. For example, where information such as the MQC and effective dates of service contracts and amendments have already been disclosed in public filings, they are not entitled to confidential treatment. *See, e.g.*, Complainant's Proposed Findings of Fact ("CPFF") ¶ 29.2 (noting the 2020 MQC in FEUs); Respondent's Responses to BBY's Proposed Findings of Fact ("RRPFF") ¶ 29.2 (marking the 2020 MQC as confidential when expressed in TEUs); CPFF ¶ 473 (noting a 2022 MQC in FEUs in public version, but then marking the MQC confidential when expressed in TEUs).

Entire reports, depositions, or email chains are generally not granted confidential treatment, and it is the parties' responsibility to designate appropriate portions for confidentiality requests. *See, e.g.*, APP 996-1140 (entire deposition transcript of Lars Jensen currently marked as confidential); APP 3937-3994 (entire expert report marked as confidential). As the Commission noted in affirming denial of confidentiality for certain materials:

Information only qualifies for confidential treatment upon a showing of good cause by demonstrating that it is "a trade secret or other confidential research, development, or commercial information." 46 C.F.R. § 502.5(b). . . . The ALJ denied the parties' requests in part as overbroad because they sought confidential treatment for entire documents, such as expert reports, declarations, or depositions, not just the portions that contained commercial information or trade secrets that qualify for protection under Rule 502.5(b). I.D., 10-11. The parties have not challenged that ruling on appeal, and even if they had, the ALJ correctly ruled that confidential treatment is limited to qualifying information and does not extend to the entire document.

Intermodal Motor Carriers Conf., American Trucking Assoc. v. OCEMA, Docket No. 20-14, 2024 WL 641501, at *46 n.12 (FMC Feb. 13, 2024).

In addition, while certain of the parties' requests for confidentiality do appear reasonable, in other documents, it is not always clear what material qualifies for confidential treatment. Certain basic information concerning contracts also ought not be marked as confidential, for example the fact of BBY & OOCL entering into a contract effective as of certain dates and amended on certain dates, and the unique number identifying such contracts. *See, e.g.*, CPFF ¶ 290.1-.2; RPPF ¶ 290.1-.2; CPFF 31. Once an MQC has been made public, it is no longer entitled to confidential treatment. It appears that the parties have marked some MQCs as confidential while others are public, which is confusing. The parties are instructed to consider whether such confidentiality requests are necessary. *See, e.g.*, CPFF ¶ 29.3 (marking as confidential the revised MQC of the 2020 service contract) vs. ¶ CPFF 30.1 (noting the MQC of the 2021 service contract); CPFF ¶ 30.2 (noting the revised MQC of the 2021 service contract). Standard industry information such as TEUs being 50% of FEUs also should not be marked as confidential. *See, e.g.*, RPPF ¶ 29.2.

In other documents, while limited redactions may be appropriate, i.e. for other customer names, a benchmark company or other nonparty, or specific dollar figures, there does not appear to be justification for the complete redaction of these pages. As some examples where redactions should be more limited, if at all: APP 2937-38; APP 2947-49; APP 2953-59; APP 3039-40; APP 3045-46; APP 3068; APP 3184-89; APP 3235-37; APP 4116; APP 4169-70; APP 5129.

The motions request confidentiality based on rationale which do not correspond to the Commission's criteria. For example, in Respondents' February 27, 2025, motion to seal accompanying their opposition brief ("OOCL Confidentiality Motion") OOCL seeks to seal information that "falls within the penumbra of allegations that are damaging to OOCL's reputation." OOCL Confidentiality Motion at 2. Respondents further assert:

OOCL has challenged the authority of this tribunal to adjudicate the claims presented against it by BBY, and the release of such information until the matter becomes final for all purposes, including appeal, will be damaging to its reputation. Should this tribunal or an appellate court conclude that this tribunal lacks jurisdiction than any such information disclosed will have been wrongfully disclosed, prejudice OOCL, and leave OOCL without recourse. OOCL adamantly denies the truth of all the spurious accusations laid against it by BBY and seeks the protection of this tribunal from the disclosure of such information until such time as a final adjudication after appeal occurs.

OOCL Confidentiality Motion at 2. But potential embarrassment is not among the reasons identified by the Commission justifying confidential treatment. Therefore, to the extent that these documents do not contain trade secret or other confidential research, development, or commercial information, they do not qualify for confidential treatment under the Commission's rules.

The requests for confidential treatment are overbroad. Therefore, the four pending requests for confidential treatment are hereby **DENIED WITHOUT PREJUDICE**. The parties may file a renewed and significantly narrowed joint request for confidential treatment by

April 28, 2025, showing good cause under Commission rules for confidential treatment. The parties must also file revised filings and a revised request table as explained below.

The parties must submit both public and confidential revised versions of the following filings, with confidential information properly marked:

- (a) BBY's amended initial brief
- (b) BBY's proposed findings of fact
- (c) OOCL's answering brief
- (d) OOCL's proposed findings of fact
- (e) OOCL's responses to BBY's proposed findings of fact
- (f) BBY's responses to OOCL's proposed findings of fact
- (g) BBY's reply brief
- (h) BBY's appendix
- (i) OOCL's appendix

These revised filings must have precisely the same layout and pagination as the originally submitted documents, so that citations to the filings will not be impacted.¹ A non-numbered cover page should also be inserted labeling the filing as "REVISED" followed by the name of the original document, the date that it was resubmitted, the original submission date, and whether the filing is the CONFIDENTIAL or PUBLIC version. The cover page of the confidential version should also make clear how confidential material has been marked (for example, with yellow highlighting, red outlines, etc.).

When preparing public versions of appendices and filings, as noted in the Initial Order:

The public version must clearly indicate any omissions, for example with blackout or braces, and its ***pagination and depiction of text on each page must be identical to that of the confidential version***. For example, the confidential filing may read: "On January 1, 2010, Complainant entered into a {25} year lease with respondent for a monthly rent of {\$1000}." The public version would read: "On January 1, 2010, Complainant entered into a { } year lease with Respondent for a monthly rent of { }."

Initial Order at 5 (emphasis added). And in the confidential version, "the confidential information must be conspicuously and clearly marked on each page, for example by outlining, highlighting, boxes, or braces." Initial Order at 5.

Pursuant to Commission Rule 502.2, all filings "must be filed with the Secretary, Federal Maritime Commission." This filing requirement applies to *both the confidential and public versions* of filings. The Commission has waived paper filing requirements and permitted filings by email. Therefore, filings of confidential versions of documents, as well as the public version, may be sent by email to secretary@fmc.gov with a courtesy copy to judges@fmc.gov.

¹ The one exception is that, since BBY's proposed conclusions of law has been stricken from the record, those pages may be deleted, and the document title may be updated to reflect this deletion.

Confidential filings should be clearly marked in the email subject line, email text, and on the filings themselves.

A confidential request table was suggested in the Initial Order, which stated: “It is recommended that a confidential request table be submitted, organizing requests for confidential treatment of exhibits by bates number. The table may include: (1) the bates range for confidential document requests, (2) the document’s description, (3) whether confidential treatment is being requested for the entirety of the bates range or only for certain material marked in both the confidential and public versions, and (4) the legal basis for the confidentiality request.” Initial Order at 6.

BBBY’s Dec. 13, 2024, motion (“BBBY Dec. Confidentiality Motion”) states in a footnote that the “Table of Contents to Complainant’s Appendix to the Opening Brief identifies the Subject Materials by highlighting (1) with blue the Complainant Confidential Information and (2) with yellow the Respondents Confidential Information. *See* Appendix to the Opening Brief at 1 n.1.” BBBY Dec. Confidentiality Motion at 3 n.1. BBBY’s motion included a confidentiality table listing the “appendix page range,” “description,” “classification requested for,” and “basis for confidentiality request” for the material in blue where confidentiality was sought by Complainant but not the material in yellow where confidentiality was sought by Complainant. BBBY Dec. Motion at 4. This table has appropriate information but is incomplete because it does not include all the material in BBBY’s filings for which confidential treatment is sought (i.e. the BBBY material for which Respondents had requested confidential treatment). In terms of formatting however, the lead information in the first column should be the APP (or RX) bates number, not the exhibit number.

Respondents did include a confidentiality table in their motion to seal accompanying their opposition brief.² OOCL Confidentiality Motion at 3-7. OOCL also indicated that it had “narrowly tailored its requests.” *Id.* at 2. However, the parties have not provided an updated, more narrowly tailored, confidentiality request applicable to BBBY’s December 13, 2024, and January 17, 2025, filings.

Further, with respect to the BBBY appendix material, Respondents only marked confidentiality in the appendix’s table of contents, not on the documents themselves. Marking the appendix table of contents, as an alternative, is insufficient for a number of reasons, including that Respondents did not indicate whether confidentiality was being requested for entire documents or for specific material; and no rationale is provided for each individual confidentiality request.

The revised request should include a consolidated confidentiality request table for the appendix, to ensure clarity regarding the portions of documents for which confidential treatment is sought. For the avoidance of confusion, and because highlighting on a page may be for some

² Respondents also marked their confidentiality motion itself as confidential. However, motions for confidentiality should not be marked confidential, as there is no confidential information contained within the motion and the public has a right to know why confidentiality was granted.

other reason, any bates pages not appearing in the final confidentiality request table will be treated as public. This table should include the following fields:

- (1) the bates numbers marked for this proceeding (APP- and RX-) and omitting leading zeros in the numerical portion of the bates numbers; this table also should be organized chronologically by this proceeding's bates numbers³
- (2) the document's description,
- (3) whether confidential treatment is being requested for the entirety of the bates range or only for certain redacted material as indicated in the confidential and public version provided, and
- (4) the rationale for the confidentiality request.

As an example:

<i>Bates</i>	<i>Description</i>	<i>Entirety of Bates or Info Indicated</i>	<i>Basis for Confidentiality Request</i>
APP 9-11	Agreement dated [dd/mm/yy]	Entire page range	Commercially sensitive rates and terms
APP 50	Depo. Transcript of [Name]	Info indicated	Pricing data on lines # and #.
RX 502	Internal email	Info indicated	Prices and non-BBBY customer names redacted

Accordingly, it is hereby **ORDERED** that BBBY's December 13, 2024, January 17, 2025, and March 21, 2025, motions for confidentiality and OOCL's February 27, 2025, motion for confidentiality be **DENIED WITHOUT PREJUDICE**. A renewed motion, if any, must be filed as a joint motion by April 28, 2025. In addition, it is hereby **ORDERED** that both Complainant and Respondents should file updated public and confidential versions of filings as listed herein by April 28, 2025.


Erin M. Wirth
Chief Administrative Law Judge

³ Ordering the table chronologically by this proceeding's Bates number is important, so that this table is usable more efficiently. For example, the confidentiality request table in Respondents' motion sorts by types of document, then by the document description, which means it is necessary to hunt throughout the entire table in order to determine whether a particular Bates numbered page is or is not included in the request for confidentiality.